

		THIS RULING IS FINAL. Moving Party shall provide notice.
2.	Delgadillo vs. General Motors, LLC 25-01481736	Motion to Compel Deposition (Oral or Written) Defendant General Motors LLC’s Motion to Compel Plaintiff’s Deposition and the Imposition of Sanctions is GRANTED. (Code Civ. Proc., § 871.26.) Code of Civil Procedure § 871.26 provides that: “Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents,” including “[t]he plaintiff.” (Code Civ. Proc. § 871.26, subd. (c).) Here, Plaintiff did not appear for his deposition within in the 120 days, and did not provide alternative dates for his deposition, as requested by GM. Plaintiff argues GM is barred from compelling his deposition because it did not complete the deposition within 120 days of the filing of its demurrer. But this argument is specious. The reason the deposition was not completed is because Plaintiff did not appear at his deposition or provide alternative dates. Although Section 871.26 is silent on any deadline or procedure in which to file a motion to compel compliance, the court has authority to hear this matter. (See <i>Chavez v. Superior Court</i> (2024) 99 Cal.App.5th 165, 180 [gaps in statutes due to legislative silence “may be filled by courts through the exercise of their inherent authority in the absence of a clear legislative intent to the contrary that goes beyond the silence itself”].) To force GM to re-notice Plaintiff’s deposition and again attempt to schedule his deposition would negate the reason behind the enactment of Section 871.26 – to streamline and expedite the lemon law litigation process. Accordingly, the motion is GRANTED. Plaintiff is ordered to appear at his deposition by July 31, 2026. Further, GM’s request for sanctions against Plaintiff’s counsel is GRANTED in the amount of \$1,500 for failure to comply with CCP § 871.26(c).) Plaintiff has failed to demonstrate “good cause” for his non-compliance. Moving Party to give notice of this ruling.

3.	Gallagher vs. Razavi 25-01522835	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production These Motions are CONTINUED to June 26, 2026 , to be heard with the motion already on calendar for that date. THIS RULING IS FINAL. Clerk to give notice.
4.	Sneary vs. Gauntlet Holdings LLC 21-01220042	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories WITHDRAWN on June 2, 2026.
5.	Powell vs. Daryani 25-01526978	Demurrer to Complaint VACATED as MOOT based on Filing of FAC. Demurrer to FAC will be heard on July 24, 2026
6.	Blain vs. Ayers 23-01361840	Motion for Protective Order The hearing for Plaintiff's motion for protective order is VACATED, as the Court has granted responding Defendant's ex parte application seeking an order permitting them to invoke the arbitration agreement. (See Minute Orders dated 3/10/26 (ROA 406) [granting RE/MAX Defendants' ex parte request] and 11/3/25 (ROA 376) [Granting Defendant Pillsbury's Motion to Compel Arbitration and providing "If the REMAX Defendants choose to contend there is a risk of conflicting rulings between the arbitration and court action, then REMAX defendants may promptly, seek to have Plaintiffs' remaining claims against the REMAX Defendants referred to arbitration. The REMAX Defendants may raise this issue via ex parte application, in light of the fast-approaching trial date...].) Since Plaintiff's claims against Pillsbury and REMAX are all part of the arbitration proceeding, the remainder of this matter is STAYED pending arbitration. (See Code Civ. Proc. §1281.4.) Since the court has granted the REMAX Defendants' ex parte application to compel Blain to pursue his claims against them in the arbitration proceeding, the matter is stayed pending the outcome of the arbitration, and there is no basis to hear Plaintiff's motion for protective order.